



CWP-3756-2021 (O&M)

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**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

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**CWP-3756-2021 (O&M)
Reserved on :-20.11.2024
Date of Decision :-02.12.2024**

Rina Garg and Another

...Petitioners

VERSUS

State of Haryana and Others

...Respondents

**CORAM : HON'BLE MR. JUSTICE SURESHWAR THAKUR
HON'BLE MRS. JUSTICE SUDEEPTI SHARMA**

Present: Mr. B.S.Rana, Sr. Advocate with
Mr. Nayandeep Rana, Advocate for the petitioners.

Mr. Ankur Mittal, Addl.A.G., Haryana with
Mr. P.P.Chahar, Sr. DAG,
Mr. Saurabh Mago, DAG and
Ms. Kushaldeep Kaur, Advocate for the respondents.

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SUDEEPTI SHARMA, J.

The present writ petition is preferred against order dated 10.02.2021 passed by the State Election Commission, Haryana vide which the petitioners have been disqualified for contesting elections for a period of three years.

2. Learned senior counsel for the petitioners contends:-

- a) That no effective opportunity of hearing was granted to the petitioners
- b) That the notice dated 15.03.2017 and 11.07.2018 were not served upon the petitioners and no effective opportunity was granted to the petitioners to examine the record.



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c) That the conclusion that diary No.268 and 269 dated 10.06.2016 are forged is without any application of mind. Neither verification of the signatures was done nor the enquiry report was provided to the petitioners. Further the process of verification by clerks were called at the back of the petitioners and no right was given to examine them.

d) That the petitioners have been disqualified under Section 10A of the Representation of People Act, whereas the Act stands amended and the relevant section is 13F of the Haryana Municipal Act, 1973.

3. *Per contra*, learned State counsel argued on the lines of the reply filed by the State and contends that there is no infirmity in the impugned order dated 10.02.2021, which is passed after following the principles of natural justice and in accordance with law.

4. We have heard learned counsel for the parties and perused the whole record of the cases in hand.

5. A perusal of the record shows as under:-

i) State Election Commission, Haryana vide its notification no. No.SEC/3ME/2015/619, dated 03.06.2015 in exercise of powers vested under clause (1) Article 243 ZA of the Constitution of India, sub-section 3 of Section 13E of the Haryana Municipal Act, 1973 had prescribed the limit of expenditure of Rs.75,000/- that may be incurred by the contesting candidate or his authorized agent in connection with election of Municipal Committee, Mahendergarh and account of election expenses shall be filed/lodged with the Deputy



Commissioner or any other officer prescribed by the Commission within 30 days from the date of declaration of the result of election.

ii) General Elections of Municipal Committee, Mahendergarh was held on 22.05.2016 and the result of the election was declared on the same day. Petitioner No. 1 was elected from Ward No. 14 and Surinder was elected from Ward No. 5 and notified in official gazette on 27.05.2016.

iii) On 07.07.2016, Petitioner no. 1 was elected as President of the MC Mahendergarh.

iv) On 27.02.2017, Deputy Commissioner intimated that total 32 contesting candidates of MC Mahendergarh, including the petitioners have not submitted their election expenditure account within prescribed time.

v) On 15.03.2017, State Election commission served show cause notice to all candidates including petitioners to explain within 15 days as to why they should not be disqualified on account of non-submission of election expenditure account within the prescribed.

vi) On 04.10.2018, a reply was received from the petitioners stating that they have submitted their election expenditure register in Municipal Committee. They further stated that it has come to their notice only after issuance of show cause notice whereas same was deposited by them in the municipality.

vii) State Election Commissioner, Haryana in exercise of powers contained under Section 3B of the Haryana Municipal Act, 1973 authorized Assistant State Election Commissioner, State Election



Commission, Haryana vide order dated 12.11.2020 to decide the cases of disqualification of the candidates of the said municipality, who failed to lodge their account of election expenses.

viii) Further Deputy Commissioner, Mahendergarh was requested to intimate the candidates who failed to deposit election expenditure to appear before the Assistant State Election Commissioner on 20.11.2020.

ix) The petitioners intimated by email that they are suffering from COVID-19 and unable to appear on 20.11.2020 and the date for hearing was rescheduled to 07.12.2020.

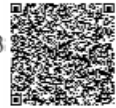
x) Petitioner no. 2 filed CWP No. 20580 of 2020 against show cause notice and notice of personal hearing, which was disposed of on 02.12.2020 with directions to the petitioner to submit response to notice and to State Election commission to take decision in the matter without any delay.

xi) Both petitioners appeared and submitted their detailed reply alongwith a copy of diary register of Municipal Committee, Mahendergarh, in which their election expenditure register has shown entered in the diary register of Municipal Committee at Sr. No. 268 and 269 both dated 10.06.2016.

xii) On 10.02.2021, a detailed inquiry was conducted, statements were got verified from the concerned Officer/Official of the Municipal Committee, Mahendergarh and after conducting detailed inquiry following conclusion was reached:



- a) Sh. Mahavir Singh, Peon was not authorized by any authority to get the diary work done from his daughter and he could not reply why the letters entered at Sr. No. 268 and 269 have been delivered to Sh. Dinesh, Clerk, whereas Sh. Khillu Ram, Clerk was doing the election related work.
- b) Sh. Mahavir Singh, Peon was asked to explain about the page marking in the diary register having Sr. No. 264 to 273 dated 10.06.2016 to 13.06.2016, he has stated that he has started diary work in between, whereas the said entries have been made on starting pages of the diary register.
- c) Signature of Sh. Dinesh Kumar, Clerk was made fraudulently in the diary register of Municipal Committee, Mahendergarh by the interested persons with the motive that such signatures could not be verified after the death of Sh. Dinesh, Clerk.
- d) There were ten letters entered in starting page of the diary register (mentioned at Sr. No. 264 to 273 dated 10.06.2016 to 13.06.2016) and on asking for the said original letters only a copy of letter mentioned at Sr. No. 267 was provided. On perusal of said letter it was found that no diary number was mentioned on the said letter, for the remaining nine letters report of each branch of the



said municipality was sent according to statements, the said letters were not received in their branches.

Accordingly, it was concluded that the petitioners failed to submit the expenditure account within 30 days and thus, were disqualified under Section 13 D of Haryana Municipal Act, 1973 read with Section 10 A of Representation of Peoples Act, 1951.

6. Following are the provisions, which were applicable, when the elections of Municipal Committee, Mahendergarh were conducted i.e. on 22.05.2016:-

"13D. Application of certain sections of Central Act 43 of 1951:

The provisions of Sections 10A, 20B, 28A, 33A, 33B, 125A, 134A, 134B, 135B and 135C of the Representation of the People Act, 1951 (Central Act 43 of 1951), shall mutatis mutandis apply to the provisions of this Act.

Section 10A of the Representation of the People Act, 1951 deals with disqualification for failure to lodge account of election expenses provides as under in the case of Parliament and State Legislative election and the same was also applicable in the municipal election under the said Act and the same is reproduced as under -

"10A. Disqualification for failure to lodge account of election expenses: If the Election Commission is satisfied that a person-

(a) has failed to lodge an account of election expenses, within the time and in the manner required by or under this Act, and



(b) has no good reason or justification for the failure, the Election Commission shall, by order published in the Official Gazette, declare him to be disqualified and any such person shall be disqualified for a period of three years from the date of the order."

13E. Account of election expenses and maximum thereof: (1)

Every candidate at an election shall, either himself or by his election agent, keep a separate and correct account of all expenditure in connection with the election incurred or authorized by him or by his election agent from the date of filing of nomination papers to the date of declaration of the result thereof, both dates inclusive.

(2) The account shall contain such particular, as may be notified by the State Election Commission in this behalf.

(3) The total of the said expenditure shall not exceed such amount as may be notified by the State Election Commission from time to time."

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4. That the State Government vide Notification No. Leg 2017 dated 17.04.2017 inserted section 13F, 13G and 13H in the Haryana Municipal Act, 1973, which provides as under :-

13 F. Disqualification for failure to lodge account of election expenses:- If the State Election Commission is satisfied that a person has failed to lodge an account of election expenses within the time and manner, as prescribed by the State Election Commission and has no reason or justification thereof, the State Election Commission shall, by order published in the Official



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Gazette, declare him to **be disqualified for contesting an election for a period of five years from the date of the order under this Act.**

13 G. Removal or reduction of period of disqualification:-

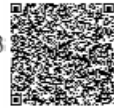
The State Election Commission may, for reasons to be recorded in disqualification under Section 13F.

13 H Lodging of account with the Deputy Commissioner:-

Every contesting candidate or his election agent shall, lodge account of **election expenditure within thirty days from the date of declaration of election result with the Deputy Commissioner or an officer** authorized by the State Election Commission. The Deputy Commissioner or such officer shall send a list of those candidates who contested but fail to lodge the account of election expenditure or made expenditure beyond the limit prescribed by the State Election Commission immediately after the completion of a period of thirty days from the declaration of election result. The State Election Commission shall accordingly pass an order of their disqualification under section 13F.”

5. That the State Government again vide Notification No. Leg 20/2018 dated 19th April, 2018 inserted section 13J and 13K in the Haryana Municipal Act, 1973 vide Notification No. Leg. 34/2019 dated 04th September, 2019, which are reproduced as under-

"13 J Removal of an elected President and Member who fails to lodge election expenditure statement:- If an elected



President or member fails to follow the provisions of sections 13F or 13H, he shall be removed by the State Election Commission after giving him an opportunity of being heard. The office of the President or member so disqualified shall become vacant immediately.

13 K Review: The President or a member so disqualified under section 13 or 13J may **file an application for review of order before the State Election Commission within a period of forty-five days from the receipt of the order. The order passed by the State Election Commission under this section shall be final and no civil court shall have jurisdiction to entertain a petition against such order."**

7. Section 13F was inserted in the Haryana Municipal Act, 1973 on 17.04.2017, which refers to disqualification for failure to lodge account of election expenses and he can be disqualified for contesting an election for a period of 5 years from the date of the order under the Act.

8. Section 10(A) of the Representation of the People Act, 1951 states regarding the disqualification for failure to lodge account of election expenses. The Election Commission has power to disqualify such person for a period of three years from the date of the order.

9. At the time of issuance of show cause notice on 15.03.2017 powers under Section 10A of Representation of the People Act, 1951, were exercised and under Section 10A, disqualification is for three years whereas under the amended provisions i.e. under Section 13F of the Haryana Municipal Act, 1973, disqualification for failure to lodge account of election expenses is for five years.



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10. A perusal of the impugned order dated 10.02.2021 shows that the State Election Commission validly exercised its power while passing the impugned order. Further the impugned order shows that the petitioners were granted personal hearing and the impugned order is passed after giving full opportunity of being heard.

11. In view of the above, we do not find any infirmity in the impugned order dated 10.02.2021. Accordingly, the present writ petition is dismissed being devoid of any merit.

12. Pending applications, if any, also stand disposed of.

(SURESHWAR THAKUR)
JUDGE

(SUDEEPTI SHARMA)
JUDGE

December 02, 2024
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Whether speaking/non-speaking : Speaking
Whether reportable : Yes